



Tort Law (9th edn)

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Abstract

This chapter discusses employers' liability and, in particular, the non-delegable duty of care, which employers owe to their employees to ensure that they are reasonably safe when at work. The duty ensures that an employer remains responsible for key tasks even when their obligations have been delegated to another. The duty of care is typically said to have four components (building on Lord Wright's statement in *Wilsons & Clyde Coal Co Ltd* [1938]) comprising the provision of: a competent workforce; adequate material and equipment; a safe system of working (including effective supervision); and a safe workplace.

Keywords: Keywords, tort law, liability, duty of care, employee safety, negligence

Problem question

Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.

Every Tuesday, Thursday and Friday evening there is a drop-in centre for young people between the ages of 11 and 16 at Kings Wharf, a local community centre. It is run by a team of youth workers employed by River.

Peony is youth counsellor at the centre. She is busy setting up the hall for the evening's activities when she slips on a puddle of greasy water from a leaking radiator and breaks her wrist. She had reported the leak to her supervisor, Dougie, over a week earlier and it had not been fixed. Tom, a youth worker at the centre and Peony's partner, sees her fall. Frustrated by Dougie's lack of action, Tom punches him on the nose.

Aodhán works in the centre kitchen, making snacks and drinks for the young people. He is using a food processor to make some cookies when a fragment of metal is thrown off by the machine and enters his eye. The food processor had been serviced two weeks earlier in accordance with the provisions of the Kitchens Safety Act 2003 [a fictitious statute] which states that 'all moving parts on food-mixers must be maintained'.

Advise the parties.

13.1 Introduction

Consider the following situations:

- *A factory worker is seriously injured when a piece of metal breaks off the machine he is using and hits him in the eye.*
- *A window cleaner falls from her ladder. Her supervisor had not told her about the safety harness provided by her employers.*
- *An employee working in a fast-food restaurant accidentally slips on a pool of grease, which has seeped from a poorly maintained deep-fat fryer, breaking his ankle.*
- *A customer at a local nightclub is seriously injured when the club's bouncer beats him up for (wrongly) suspecting that he was attempting to jump the queue.*

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✚ In all these cases, tortious liability might arise. The common law and various statutory provisions governing liability in the workplace impose a heavy burden on employers not only to ensure the safety of their workforce but also in relation to torts committed by their employees against others in the course of their employment. An employer will typically be liable in tort in one of three ways:

- (1) An employer owes a non-delegable common law duty of care to their employees and therefore may be *personally* liable for harm caused to their employees.¹
- (2) An employer may also be *personally* liable for the breach of a specific statutory duty, such as that arising out of the Employer's Liability (Defective Equipment) Act 1969.²
- (3) An employer may be liable *vicariously* for injuries caused by an employee's tort committed in the course of their employment.

This chapter focuses on an employer's non-delegable duty of care. An employer's personal liability for breach of a specific statutory duty is discussed in **Chapter 14** and vicarious liability is discussed in **Chapter 20**.³

Watch our video 'Three sides of a triangle' where we explore how the various ways in which an employer may be liable fit together.

Video playback is not supported in this format.

Video 13: Three sides of a triangle

Pause for reflection

Historically it was extremely difficult for employees to recover for injuries suffered at work. The 'unholy trinity'—comprising the doctrine of common employment (which prevented an employee from suing their employer for injury negligently inflicted by a fellow employee (*Priestly v Fowler* [1837])),⁴ the defences of contributory negligence (an absolute bar to recovery until the Law Reform (Contributory Negligence) Act 1945) and *volenti non fit injuria*—effectively insulated employers from liability with the result that responsibility for safety in the workplace rested primarily with those least able to ensure it—the employees. The situation began to change towards the end of the nineteenth century as a combination of the growth in the power of trade unions, greater awareness of hazardous working conditions (particularly on the railways) and the increasing availability of employers' liability insurance encouraged the judiciary and the legislature to mitigate the harshness of these rules. And, by the mid-twentieth century, all three obstacles had been either abolished or strictly confined.⁵

Until recently employees were in a stronger position than many other accident victims.⁶ As a result, workplace litigation (which includes actions for vicarious liability against employers) has generated a large number of tort claims.⁷ The threat of adverse publicity and a desire to maintain labour/public relations means that many employers are likely to settle out of court and the Employers' Liability (Compulsory Insurance) Act 1969, which makes it compulsory for employers to insure against workplace accidents, means that employers are likely to be able to meet any award of damages. As a result, someone injured at work (or by an employee acting 'in the course of their employment') is more likely to be able to claim and, importantly, recover than someone who suffers the same injury outside the workplace.

Do you think this is fair on employers? Consider the following justifications: (a) employees often have limited control over the situations they find themselves in at work, while employers are in a position to ensure that the conditions they provide are safe; (b) imposing liability on employers encourages them to improve working conditions (something they are uniquely able to do); and (c) employers are

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(or at least should be) better informed about the various hazards of the working environment (e.g. the machinery or chemicals they use), unlike an employee who may be inexperienced in the industry and may not be aware of the risks and, therefore, know how to take care. Do you agree?

13.2 An employer's personal non-delegable duty of care

An employer's personal non-delegable duty of care, established in *Wilsons & Clyde Coal Co Ltd v English* [1938], requires an employer to see that reasonable care is taken for their employees' safety.

Wilsons & Clyde Coal Co Ltd v English [1938] AC 57 (HL)

A miner was crushed in a mining accident after haulage equipment was set in motion as he was travelling through the pit at the end of the day (contrary to recognised mining practice). He sued the mine owners on the basis that they had failed to provide a reasonably safe system of work. The defendant employers claimed they had discharged their duty by appointing (as required by statute) a competent and qualified manager to control the machinery.

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✦ The House of Lords unanimously rejected the employer's argument. Finding the employer personally liable, Lord Wright said:

[T]he [employer's] obligation is fulfilled by the exercise of due care and skill. But it is not fulfilled by entrusting its fulfilment to employees, even though selected with due care and skill. The obligation is threefold, the provision of a competent staff of men, adequate material, and a proper system and effective supervision. (at 78)

The failure of the manager to ensure the health and safety of the claimant had put the employer, the defendant mine company, in breach of *its* duty of care.⁸

That an employer owes their employees a personal duty to take reasonable care to ensure their health and safety at work, competent work colleagues and so on is perhaps unremarkable. What is more remarkable is the form this duty takes. Unusually, this duty is non-delegable in nature.⁹ This means that when the duty is breached, the defendant has committed the wrong *whether or not* they performed the action. The action is attributed to the defendant because responsibility for it cannot be delegated to anyone else. In other words, it is not enough for the employer *themselves* to take reasonable care to see that their employees are safe. Rather, their duty is to ensure that reasonable care *is taken*, whoever is entrusted with this duty. This is an important difference, especially when we consider that in many businesses it is simply not feasible for the owner themselves to supervise all aspects of the day-to-day running of the business. In practice, all we can expect

most employers to do is to take reasonable care to ensure that the people they choose to delegate these jobs to are capable of doing so. However, the consequence of an employer's duty of care being non-delegable means that an employer will have breached their duty if those they have entrusted with responsibility fail to exercise reasonable care in respect of the employees' safety, *even if the employer has exercised reasonable care in the appointment of those they entrusted*. Nor can employers escape liability by showing that they acted reasonably in delegating this task to the relevant person. While *factual* responsibility for employees' safety may (and often will have to) be delegated, *legal* responsibility cannot be. If reasonable care is *not* taken to ensure that employees are reasonably safe when at work, the employer will be held to have breached their duty of care.¹⁰ It makes no difference that it was not the employer but rather the person to whom they had delegated this responsibility who had acted carelessly.

p. 385 ↵ An employer's non-delegable duty is typically said to have four components (building on Lord Wright's statement in *Wilsons & Clyde Coal Co Ltd*) comprising the provision of:

- a competent workforce;
- adequate material and equipment;
- a safe system of working (including effective supervision);
- a safe workplace.

Although often considered separately for the sake of convenience (as **sections 13.2.1 to 13.2.4**), these components are better regarded as manifestations of a single duty on the part of an employer to take reasonable care to ensure the safety of their workforce. As noted by Pearce LJ in *Wilson v Tyneside Window Cleaning Co* [1958]:

Now it is true that in *Wilsons & Clyde Coal Co Ltd v English* [1938] Lord Wright divided up the duty of a master into three main headings, for convenience of definition or argument; but all three are ultimately only manifestations of the same duty of the master to take reasonable care so to carry out his operations as not to subject those employed by him to unnecessary risk. Whether the servant is working on the premises of the master or those of a stranger, that duty is still, as it seems to me, the same; but as a matter of common sense its performance and discharge will probably be vastly different in the two cases. The master's own premises are under his control: if they are dangerously in need of repair he can and must rectify the fault at once if he is to escape the censure of negligence. But if a master sends his plumber to mend a leak in a respectable private house, no one could hold him negligent for not visiting the house himself to see if the carpet in the hall creates a trap. Between these extremes are countless possible examples in which the court may have to decide the question of fact: Did the master take reasonable care so to carry out his operations as not to subject those employed by him to unnecessary risk? Precautions dictated by reasonable care when the servant works on the master's premises may be wholly prevented or greatly circumscribed by the fact that the place of work is under the control of a stranger. Additional safeguards intended to reinforce the man's own knowledge and skill in surmounting difficulties or dangers may be reasonable in the former case but impracticable and unreasonable in the latter. So viewed, the question whether the master was in control of the premises ceases to be a matter of technicality and becomes merely one of the ingredients, albeit a very important one, in a consideration of the question of fact whether, in all the circumstances, the master took reasonable care. (at 266–7)

Once an employer is found to be in breach of their non-delegable or statutory duty of care (i.e. to have fallen below the standard of a 'reasonable and prudent employer'),¹¹ and that there is a causal link between this breach and the claimant's harm. The latter can be more easily stated than done (see e.g. *Fairchild v Glenhaven Funeral Services Ltd* [2002] and related litigation). Finally, it is necessary to consider any potential defences (usually contributory negligence).

13.2.1 Competent workforce

p. 386 An employer owes their employees a duty to ensure that they employ competent colleagues, including effective supervision and training. This extends to the bullying, victimisation or harassment of an employee by another employee (*Waters v Commissioner of Police for the Metropolis* [2000]).¹² While this aspect of an employer's personal non-delegable duty is of less importance following the abolition of the doctrine of common employment, it may still be useful in circumstances where an employer is not vicariously liable. In *Hudson v Ridge Manufacturing Co* [1957], for example, an employee was injured when a colleague, who had a reputation for being a practical joker, tripped him up. Though the joker had been officially reprimanded for his behaviour by his employer, the court nevertheless held that given the seriousness of his conduct the employer should have done more to deter it, and in failing to do so, was in breach of their duty of care to the injured employee.

13.2.2 Adequate material and equipment

An employer also has a duty to take reasonable care to provide all necessary equipment (including safety equipment), as well as instructions on how to use it and to maintain it in a reasonable condition.

Here the common law has been supplemented by the Employer's Liability (Defective Equipment) Act 1969. Section 1(1) establishes that if an employee is injured in the course of employment by a defect in equipment provided by their employer, *and* the employee can prove that the defect was (wholly or partly) caused by the fault of a third party (usually the manufacturer), then the employer will be liable. The Act was introduced in order to ameliorate the effects of *Davie v New Merton Board Mills Ltd* [1959]. In this case, an employee was blinded in one eye when a piece of metal chipped off the tool he was using. The tool had been negligently manufactured (causing it to become too hard for its purpose), although externally it appeared to be in good condition. Rejecting the claimant's claim for compensation from his employer, the House of Lords held that the employers had discharged their responsibility to provide proper tools by purchasing them from a reputable supplier. The practical effect of this decision was to leave the employee without compensation where the supplier or manufacturer could not be identified or was bankrupt.

Counterpoint

Unfortunately, the Employer's Liability (Defective Equipment) Act 1969 does not completely remedy the problems posed by *Davie v New Merton Board Mills Ltd*. As well as establishing causation—that is, that the defect in the equipment caused the accident—the employee needs to prove 'fault' against the third party—that is, that on the balance of probabilities the defect was due to the fault of some other person (usually during its manufacture). Both can be difficult to establish. However, potential claimants may be helped in this by the Consumer Protection Act 1987 (discussed in **section 12.3**) as the definition of fault in the 1969 Act includes 'breach of statutory duty or other act or omission which gives rise to liability in tort'.¹³

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↪ Despite its limitations, the Employer's Liability (Defective Equipment) Act 1969 is likely to have a new lease of life following the enactment of section 69 of the Enterprise and Regulatory Reform Act 2013. As Nigel Tomkins notes:

'The purpose of the Act was manifestly to saddle the employer with liability for defective plant of every sort with which the employee is compelled to work in the course of his employment ...' [Lord Oliver in *Coltman v Bibby Tankers Ltd (The Derbyshire)* [1988]]. I have no doubt that the 1969 Act is about to be dusted off and used again. This is just one of the inevitable consequences of [section 69].¹⁴

Equipment, defined by section 1(3) of the 1969 Act as 'any plant and machinery, vehicle, aircraft or clothing', has been construed relatively broadly, extending in *Coltman v Bibby Tankers Ltd (The Derbyshire)* to include a ship provided by the employer for the purposes of employment. In *Knowles v Liverpool City Council* [1993], the House of Lords held that 'equipment' also included any material used by the employee for the purposes of the business—in that case a paving stone which the claimant was laying and was injured by.

However, an employer may be able to avoid liability in relation to a failure to provide safety equipment if they can establish that, even if such equipment had been provided, the employee would not have used it. The argument here is one of causation: the employer is in clear breach of their duty, but as the claimant would have suffered the same injury in any case, their failure to provide safe equipment cannot be said to have been a cause of the employee's injuries.

***McWilliam v Sir William Arrol & Co Ltd* [1962] 1 WLR 295 (HL)**

The claimant, a steel erector, fell to his death at work. He was not wearing a safety harness. His employers had failed (in breach of their statutory duty) to provide safety equipment. However, the House of Lords held that they were not liable for the claimant's death. The employers were able to provide strong evidence that the employee rarely, if ever, used a safety harness and so, even if one had been provided, it was reasonable to infer that he would not have worn it. As such, he would have suffered the same injury even if the employers had provided the necessary equipment.

13.2.3 A proper system of working (including effective supervision)

An employer has a duty to ensure a reasonably safe system of working and to give employees general safety instructions about their job. This includes the physical layout of the workplace, the sequence in which work is carried out and the provision, where appropriate, of warnings and notices. In *Pape v Cumbria County Council* [1992], for example, a part-time ↵ cleaner who contracted dermatitis after working with various detergents and chemical cleaning products was able to recover as, although the defendants had provided rubber gloves, they did not warn her of the possibility of developing dermatitis, nor instruct her to wear them. It was not enough to simply *provide* the rubber gloves; the employer should also have taken reasonable steps to ensure that the safety equipment was properly understood and used by the claimant.

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Pause for reflection

Pape seems at odds with current trends away from imposing liability on employers for 'health and safety' violations. However, even at the time, it could be argued that it makes the employer liable for something which is really the employee's responsibility: after all, should employees really need to be told when to use the safety equipment provided? Why do you think the court came to this decision? Do you agree with it?

The employer must not only ensure that there is a safe system of work, they must also take care to see that the system is implemented (*Mullaney v Chief Constable of West Midlands Police* [2001]). In so doing, they are expected to be aware that employees are often careless about taking safety precautions and that dangerous working practices can develop. In *General Cleaning Contractors v Christmas* [1953], a window cleaner was standing on the sill outside a first-floor window when the window unexpectedly closed. The court held that the employer should have given the employee clearer instructions so as to ensure such accidents did not happen and in failing to do so they had not provided a safe system of work.

An employer remains under a duty to ensure a safe system of work for an employee even when the employee is temporarily posted elsewhere. In *McDermid v Nash Dredging & Reclamation Co Ltd* [1987], an 18-year-old deckhand was instructed by his employer, the defendant company, to work on a tug owned by the defendants' parent company. He suffered serious injuries to his leg as a result of the captain of the tug's negligence. The issue was whether the deckhand's employer was liable for the captain's failure to operate a safe system of work. The House of Lords held that the defendants were liable on the basis that they retained personal responsibility for the deckhand's safety notwithstanding that he was working outside their workplace:

It matters not whether one says that there was no 'system' in operation at all, or whether one says that the system provided was unsafe, or whether one says that the system in fact provided was not in use at the crucial stage. In any event the defendants had delegated their duty to the plaintiff to Captain Sas [the captain of the tug], the duty had not been performed, and the defendants must pay for the breach of their 'non-delegable' obligation. (Lord Hailsham at 911)

The nature and extent of an employer's supervision was extended even further in *Jebson v Ministry of Defence* [2000]. A group of soldiers had gone for a night out. Anticipating that they would be worse for wear, the defendants—the soldiers' employer—sent a lorry to pick them up and bring them back to barracks. The claimant, who was very drunk, fell and injured himself as he attempted to climb onto the roof of the lorry on its way home. In allowing his claim for compensation, the Court of Appeal held that the defendants had failed to ensure an effective system of supervision. Knowing the soldiers' drunken state, the defendants ought to have had a supervisor in the back of the lorry to ensure that none of them injured themselves.

However, despite appearances to the contrary, an employer's duty to ensure a safe system of work is not unlimited. Where an employer is on another's premises, their liability will depend on what is reasonable in the circumstances—including the place of work, the nature of the building, the experience of the employee, the nature of the work, the degree of control exercised by the employer and their knowledge of the premises. Thus, in *Cook v Square D Ltd* [1992], the Court of Appeal held that though the employer is under a duty to take reasonable steps to ensure the safety of their employee, they could not reasonably be expected to be responsible for daily events on a site in Saudi Arabia and so were not in breach of their duty when the employee was injured after slipping on a raised floor tile.

In recent years, the courts have recognised that as well as ensuring an employee's physical safety, an employer's duty also encompasses (at least in some cases) that reasonable care is taken to prevent *psychiatric* injury, including workplace stress¹⁵ and suicide (*Corr v IBC Vehicles Ltd* [2008]; *Waters v Commissioner of Police for the Metropolis* [2000]). It may also extend to some aspects of an employee's *economic* wellbeing—such as writing a reference (*Spring v Guardian Assurance* [1995])—though this does not extend to protection of an employee's property (*Deyong v Shenburn* [1946]) or economic or reputational harm suffered in the conduct of litigation (*James-Bowen and others v Commissioner of Police for the Metropolis* [2016]).

13.2.4 A safe workplace

An employer must take reasonable care to provide a safe place of work. However, this does not mean that the employer must ensure that the workplace is completely safe.

***Latimer v AEC Ltd* [1953] AC 643 (HL)**

Heavy rainfall flooded the defendant's factory. The rainwater mixed with an oily liquid, which usually collected in channels in the floor. This meant that when the water drained away the floor became very slippery. The defendants put down sawdust to remedy this. However there was insufficient sawdust to cover the entire floor, though the majority of the floor was covered. The claimant slipped on part of the untreated floor and broke his ankle.

The House of Lords held that the defendants were not liable. They had done everything that could reasonably be expected of them. The danger of injury to their employees was not such as to impose on the employer further costly and inconvenient measures, for example closing the factory until the floor had completely dried out.¹⁶

p. 390 ↪ Similarly in *Nicholls v Ladbroke's Betting and Gambling Ltd* [2013] the claimant suffered psychiatric harm as a result of being traumatised during an armed raid at the betting shop where she worked as a cashier. The employer was held not to be in breach of his duty of care in failing to instruct the employee to use the

magnetic lock on the premises: 'In my view it cannot ordinarily be negligent to fail to ensure that a safety or security device is used if it would not have been negligent not to have installed the device in the first place' (Tomlinson LJ at [77]).

Test your understanding by trying this section's self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-13-2>.

13.3 Conclusion

In this chapter we have considered ways in which an employer may be personally liable in tort for injury suffered by one of their employees. An employer owes a personal non-delegable duty of care to their employees to ensure a safe workplace for their employees. This sees that the employer remains responsible for key tasks even when the performance of them has been delegated to another. The duty arises from the direct nature of the relationship between the claimant and the defendant—the conduct of the delegated employee is used to establish breach. An employee may also recover compensation for losses caused by the employer's failure to comply with a statutory obligation.

End-of-chapter questions

After reading the chapter carefully, try answering the following question.

- 1 Critically evaluate the development of the common law duty of care employers owe to their employees.

If you would like to know what we think, check the **answer guidance** <https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-13-answers-to-end-of-chapter-questions?options=showName>.

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to the various parties?**

Here are some pointers to get you started:

→

The potential claim between Peony and River raises an almost classic case of an employer's non-delegable duty of care.

→ Aodhán has two potential actions: one relying on the Employer's Liability (Defective Equipment) Act 1969 and one for breach of statutory duty (under the fictitious Kitchens Safety Act 2003).

→ River will be vicariously liable for Tom's actions—see further discussion in **Chapter 20**.

If you need some more guidance:

→ See the **annotated version of the problem with issues and cases to consider** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-13-annotated-problem-question-interactive>>.

→ Check your answer against the **suggested outline answer** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-13-answers-to-problem-question>>.

p. 391 **Further reading**

The best place to start your further reading is with Tomkins' 2010 article which explores the evolution of an employer's common law duty of care.

Collins, Hugh *Employment Law* (2nd edn OUP 2010)

Patten, Keith 'Personal Injury: Step Back in Time' (2013) 163 *New Law Journal* 62

Tomkins, Nigel 'First Principles in Employers' Liability' [2010] *Journal of Personal Injury Law* 131

Tomkins, Nigel 'Civil Health and Safety Law after the Enterprise and Regulatory Reform Act 2013' [2013] *Journal of Personal Injury Law* 203

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-13-web-links?options=showName>>.

Notes

¹ Non-delegable duties do not only arise in an employment context or between employers and employees. See e.g. *Woodland v Essex County Council* [2013] which established that a school owed a non-delegable duty of care towards its pupils, as do hospitals towards their patients (discussed in **section 20.2**).

² Until recently an employer could also be liable in the tort of breach of statutory duty (discussed in **Chapter 14**), which enables a claimant in certain circumstances to recover compensation for losses caused by the defendant's failure to comply with a statutory obligation. However, s 69 of the Enterprise and Regulatory Reform Act 2013 prevents

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claims from being brought against an employer unless specifically provided for by the statute or where it can be proven, on ordinarily common law principles, that the employer has been negligent (see further **section 14.2**). The Employer's Liability (Defective Equipment) Act 1969 is unaffected because it is not classified as 'health and safety legislation' under the Health and Safety at Work etc Act 1974.

³ The nightclub owner in the example at the start of the chapter may be both *personally* liable to the injured customer (e.g. if they were negligent in their selection and/or control of the bouncer) and *vicariously* liable (see further *Mattis v Pollock (t/a Flamingos Nightclub)* [2003] and discussion in **Chapter 20**).

⁴ See AWB Simpson 'A Case of First Impression: *Priestley v Fowler* (1837)' in *Leading Cases in the Common Law* (Clarendon Press 1995) 128.

⁵ The doctrine of common employment was abolished by the Law Reform (Personal Injuries) Act 1948, s 1.

⁶ See discussion of s 69 of the Enterprise and Regulatory Reform Act 2013 in **sections 13.2.2** and **14.2**.

⁷ In 2023–4, compensation claims against employers comprised the third highest number of claims registered with the Department for Work and Pensions Compensation Recovery Unit amounting to 9.3 per cent of claims overall (n = 44,547), down from 10.3 per cent (105,291 claims) in 2013–14. This is likely to be, at least in part, a result of the Enterprise and Regulatory Reform Act 2013, s 69, though it may be that an increase in working from home may also be playing a part as well as an overall downward trend in claims generally: 477,200 claims in 2023–4 compared to 1,048,309 in 2012–13.

⁸ The claimant was unable to argue that their employer was vicariously liable for the actions of the manager due to the doctrine of 'common employment' (abolished in 1948). An employee was deemed to have assumed the risk of negligence by their fellow employees (provided they had been selected with reasonable care by their employer) as one of the terms of their employment contract. Were similar facts to *Wilsons & Clyde Coal Co Ltd* to arise today, employees would be able to argue that their employer is both personally *and* vicariously liable for the actions of their manager.

⁹ Though see Robert Stevens 'Non-Delegable Duties and Vicarious Liability' in Jason Neyers, Erika Chamberlain and Stephen Pitel (eds) *Emerging Issues in Tort Law* (Hart 2007).

¹⁰ Conversely, if reasonable care is taken the employer will not be liable. An example of this is the Supreme Court's decision in *Baker v Quantum Clothing Group* [2011] in which the claimants had suffered hearing loss as a result of industrial noise before the Noise at Work Regulations were introduced in 1989. On the employer's common law duty in negligence, the majority held that until the regulations were introduced (and allowing a period for implementation) the harm suffered by the claimants was not foreseeable, and hence there was no liability in negligence.

¹¹ See e.g. *Stokes v Guest, Keene and Nettlefold (Bolts and Nuts) Ltd* [1968] and also the discussion in **section 8.4**.

¹² An employer may also find themselves vicariously liable in respect of such behaviour (see *Majrowski v Guy's and St Thomas' NHS Trust* [2006] discussed in **Chapter 20**).

¹³ The provision also ensures that where an employee is able to successfully establish a claim against both a third party manufacturer *and* their employee, the latter will usually be able to seek an indemnity and/or contribution from the third party.

¹⁴ Nigel Tomkins 'Civil Health and Safety Law after the Enterprise and Regulatory Reform Act 2013' [2013] *Journal of Personal Injury Law* 203, 211.

¹⁵ See further discussion in **section 5.4**.

¹⁶ Are the facts of **Latimer** distinguishable from those of the example at the beginning of the chapter where the employee slips on a pool of grease in a fast-food restaurant? The answer depends on whether efforts have been made to make the floor safe. As you are told that the machine is poorly maintained it is likely that the manager would have had an opportunity to put this right (unlike the sudden effects of the heavy rainfall in **Latimer**).

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